

		Moreover, the failure to file a written opposition or appear at the hearing cannot be deemed an admission that the motion was proper or that sanctions should be awarded. (Cal. Rules of Court, Rule 3.1348(B).) The motion to compel further responses to requests for production is DENIED. Counsel for Mr. Washington is ordered to serve notice of ruling on all three motions.
01430606	Collins - Trust	TENTATIVE RULING Case: Collins - Trust 01430606 Calendar No.: 6 Date: 07/15/2026 MOTION FOR LEAVE TO AMEND (ROA 50) Petitioner Guy Collins ("Petitioner") moves for leave to amend his First Amended Petition and file the proposed Second Amended Petition attached as Exhibit A to the moving papers. The motion is opposed by Respondent Kelly Collins ("Respondent"). <u>Proposed Eighth Cause of Action</u> Petitioner seeks to add an eighth cause of action for "Disinheritance of [Respondent] from the Estate of Joseph Eugene Collins" pursuant to Probate Code section 259 and Welfare and Institutions Code section 15610.30. Probate Code section 259 provides a remedy, not an independent cause of action. Specifically, Probate Code section 259 provides a forfeiture remedy in connection with an underlying cause of action for elder abuse. Furthermore, by its plain language, Probate Code section 259 is only available when the abused elder has passed away. It provides conditions by which a person "shall be deemed to have predeceased a decedent." (Emphasis added.) Notwithstanding the liberal policy in favor of granting leave to amend, the court has discretion to deny leave to amend where the proposed amendment is legally futile. (<i>Jo Redland Tr., U.A.D. 4-6-05 v. CIT Bank, N.A.</i> (2023) 92 Cal.App.5th